IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.-105
CA(CAA)-18(ND)/2020

IN THE MATTER OF:
MIA Infrastructure Pvt Ltd. & Ors. And Tata Realty and Infrastructure Ltd. **....APPLICANT**

SECTION
U/s 230-232

Order delivered on 27.01.2020

CORAM:
CH. MOHD. SHARIEF TARIQ
MEMBER (JUDICIAL)
SMT SAROJ RAJWARE,
MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Rajesh K. Jha, CS
For the OL :
For the Income Tax :
For the RD :

ORDER

Counsel for the Petitioner is present. It is submitted that the Applicant Company No. 1/Transferor Company No. 3 and Applicant Company No. 2/Transferor Company No. 4 are falling within the jurisdiction of this Tribunal. The counsel for the petitioner companies prayed to issue notice to the statutory authorities. Publication of the notice in the newspapers and fix date for hearing of the petition.

The Registry is directed to issue notice to RD, RoC, IT Deptt. and the Official Liquidator. The Official Liquidator is directed to appoint the Chartered Accountant on his own and file the report with regard to the Applicant transferor companies.

The Applicant companies are directed to cause publication of notice in the newspaper one in English i.e. Business Standard. The other in vernacular having the same name. The Applicant companies shall send private notice to the said authorities, having 30 days plus 2 days prior to the date fixed for hearing of the petition.

The Authorities to whom the notice is issued are directed to file representation within 30 days from the date of receipt of the notice failing which it shall be presumed that they have no representation to make.

The Applicant companies shall file proof of sending notice and making publication as directed.

List on 11th March 2020.

-Sd-

(SAROJ RAJWARE)
MEMBER (TECHNICAL)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (JUDICIAL)

UPASANA

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